

TENTATIVE RULING

Case: Steinke v. Huntington Family Trust
Case No. CV2025-0712

Hearing Date: June 9, 2026 **Department Fourteen** **9:00 a.m.**

Defendant Huntington Family Trust's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, 453.)

Plaintiff Donald Steinke's request for judicial notice is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are irrelevant to the Court's determination of the motion. (*Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825 ["Any matter to be judicially noticed must be relevant to a material issue."].)

Defendant's motion for summary judgment is **DENIED**. (Code Civ. Proc., § 437c, subds. (c), (p)(2).) Pursuant to *Fernandez v. Lawson* (2003) 31 Cal.4th 31, defendant has established that it did not need to comply with OSHA tree trimming regulations under the circumstances because defendant, the homeowner, hired plaintiff for noncommercial purposes. (*Fernandez, supra*, 31 Cal.4th at pp. 36-39; UMF 2; Defendant's RJN, Exhibit A, p. 4; see also *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 315-316.) However, defendant has not shown that plaintiff cannot establish his negligence per se cause of action. (CACI 418.) Specifically, defendant did not negate either element of negligence per se as to all laws stated in the complaint or show that such violations are excused as a matter of law. (*Ibid.*; Lab. Code, § 3352, subd. (a)(8); Defendant's RJN, Exhibit A, p. 4; see also *Reliance Nat. Indemnity Co. v. General Star Indemnity Co.* (1999) 72 Cal.App.4th 1063, 1073 [noting that a "summary judgment motion is directed to the issues framed by the pleadings"].)

As defendant has not established that plaintiff's third cause of action fails and defendant did not seek summary adjudication in the alternative, the Court does not consider defendant's arguments as to plaintiff's negligence (first) and premises liability (second) causes of actions. (Code Civ. Proc., § 437c, subds. (c), (f).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.